

This Agreement is made on the [DATE] day of [MONTH] [YEAR]

Between

[DISCLOSING PARTY]

And:

[RECEIVING PARTY]

Parties This Agreement is made on the [DATE] day of [MONTH] [YEAR]

Between:

(1) [DISCLOSING PARTY], having its registered address at [DISCLOSING PARTY ADDRESS], email: [DISCLOSING PARTY EMAIL], telephone: [DISCLOSING PARTY PHONE] (the

"Disclosing Party")

And:

(2) [RECEIVING PARTY], having its registered address at [RECEIVING PARTY ADDRESS], email: [RECEIVING PARTY EMAIL], telephone: [RECEIVING PARTY PHONE] (the **"Receiving**

Party")

(each a **"Party"** and together the **"Parties"**)

Background

The Disclosing Party possesses certain confidential and proprietary information relating to [BUSINESS PURPOSE/FIELD] that it considers to be valuable and confidential.

The Receiving Party has expressed interest in evaluating potential [BUSINESS RELATIONSHIP TYPE] with the Disclosing Party, which may include but is not limited to [SPECIFIC PURPOSE OF DISCLOSURE].

In connection with such discussions and evaluations, the Disclosing Party may disclose certain confidential information to the Receiving Party.

The Parties wish to enter into this confidentiality agreement to protect the confidential information of the Disclosing Party and to define the terms and conditions under which such information may be disclosed and used.

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Germany.

Definitions

"Affiliate" means, with respect to any Party, any entity that directly or indirectly controls, is controlled by, or is under common control with such Party, where "control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of such entity, whether through ownership of voting securities, by contract or otherwise.

"Confidential Information" means all information, data, materials, and documentation of any kind, whether written, oral, electronic, visual, or in any other form, that is disclosed by the Disclosing Party to the Receiving Party, including but not limited to technical data, trade secrets, know-how, research, product plans, products, services, customers, customer lists, markets, software, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing, finances, or other business information.

"Disclosing Party" means the Party disclosing Confidential Information under this Agreement, as identified in the Parties section above.

"Effective Date" means [EFFECTIVE DATE].

"Purpose" means [PURPOSE OF DISCLOSURE].

"Receiving Party" means the Party receiving Confidential Information under this Agreement, as identified in the Parties section above.

"Representatives" means, with respect to any Party, its directors, officers, employees, agents, advisors, consultants, and professional advisers who have a legitimate need to know the Confidential Information for the Purpose and who are bound by confidentiality obligations no less restrictive than those contained in this Agreement.

"Third Party" means any person or entity other than the Disclosing Party, the Receiving Party, and their respective Affiliates and Representatives.

Confidential Information

For the purposes of this Agreement, **"Confidential Information"** means any and all non-public, proprietary, or confidential information disclosed by the Disclosing Party to the Receiving Party, whether orally, in writing, electronically, or in any other form, including but not limited to: technical data, research, inventions, processes, algorithms, software, source code, object code, and know-how;

business information, including strategies, plans, financial information, pricing, customer lists, supplier information, and market analyses;

any information concerning the business, affairs, customers, clients, suppliers, plans, intentions, or market opportunities of the Disclosing Party;

any analyses, compilations, studies, or other documents prepared by the Receiving Party that contain or reflect Confidential Information.

Confidential Information shall be deemed to include information that has been marked or identified as "confidential," "proprietary," or with a similar designation, as well as information that would reasonably be understood to be confidential given the nature of the information and the circumstances of disclosure.

Confidential Information shall not include information that:

is or becomes publicly available through no breach of this Agreement by the Receiving Party;

was rightfully known to the Receiving Party prior to disclosure by the Disclosing Party;

is rightfully received by the Receiving Party from a Third Party without breach of any confidentiality obligation;

is independently developed by the Receiving Party without use of or reference to the Confidential Information; or

is required to be disclosed by law or court order, provided that the Receiving Party gives the Disclosing Party prompt written notice of such requirement.

Obligations of Receiving Party

The Receiving Party shall hold all Confidential Information in strict confidence and shall not disclose any Confidential Information to any Third Party without the prior written consent of the Disclosing Party.

The Receiving Party shall use the Confidential Information solely for the Purpose and shall not use such information for any other purpose whatsoever.

The Receiving Party shall limit access to Confidential Information to those of its Representatives who have a legitimate need to know such information for the Purpose and who have been informed of the confidential nature of such information.

The Receiving Party shall ensure that all Representatives who have access to Confidential Information are bound by confidentiality obligations no less restrictive than those contained in this Agreement.

The Receiving Party shall not copy, reproduce, or create derivative works from any Confidential Information except to the extent reasonably necessary for the Purpose.

The Receiving Party shall not reverse engineer, disassemble, or decompile any Confidential Information, including but not limited to any software, technical data, or proprietary processes disclosed by the Disclosing Party.

The Receiving Party shall immediately notify the Disclosing Party in writing upon becoming aware of any unauthorized use or disclosure of Confidential Information and shall cooperate with the Disclosing Party in any efforts to prevent or remedy such breach.

Permitted Disclosures

The obligations set forth in Section 3 shall not apply to any Confidential Information that the Receiving Party can demonstrate by written records:

was known to the Receiving Party prior to disclosure by the Disclosing Party;

is or becomes publicly available through no breach of this Agreement by the Receiving Party;

is rightfully received by the Receiving Party from a Third Party without breach of any confidentiality obligation;

is independently developed by the Receiving Party without use of or reference to the Confidential Information.

The Receiving Party may disclose Confidential Information if and to the extent such disclosure is **required by law**, court order, or governmental regulation, provided that the Receiving Party: gives the Disclosing Party prompt written notice of such requirement; cooperates with the Disclosing Party in seeking a protective order or other appropriate remedy; and

discloses only that portion of the Confidential Information that is legally required to be disclosed.

The Receiving Party may disclose Confidential Information to its Representatives who have a legitimate need to know such information for the Purpose, provided that such Representatives are bound by confidentiality obligations no less restrictive than those contained herein.

The Receiving Party may disclose Confidential Information with the prior written consent of the Disclosing Party, subject to any conditions specified in such consent.

Standard of Care

The Receiving Party shall protect and safeguard the Confidential Information using the same degree of care that it uses to protect its own confidential and proprietary information, but in no event less than reasonable care.

The Receiving Party shall take all reasonable precautions to prevent any unauthorized disclosure, publication, or dissemination of the Confidential Information.

The Receiving Party shall ensure that its Representatives who have access to the Confidential Information are informed of the confidential nature of such information and are bound by confidentiality obligations at least as restrictive as those contained in this Agreement.

The Receiving Party shall be liable for any breach of this Agreement by its Representatives as if such breach had been committed by the Receiving Party itself.

The Receiving Party shall immediately notify the Disclosing Party in writing upon becoming aware of any unauthorized use or disclosure of the Confidential Information.

Return or Destruction of Information

Upon written request by the Disclosing Party, or upon termination or expiration of this Agreement, the Receiving Party shall promptly return to the Disclosing Party all documents, materials, and other tangible items containing or representing Confidential Information.

In addition to the return obligation under clause 6.1, the Receiving Party shall destroy all copies, extracts, summaries, analyses, and other materials in any form that contain or are derived from Confidential Information, including electronic copies stored on computers, servers, or other storage media.

The destruction required under clause 6.2 shall be carried out in a secure manner that prevents recovery or reconstruction of the Confidential Information.

Within thirty (30) days of completion of the return and destruction obligations, the Receiving Party shall provide written certification to the Disclosing Party confirming that all Confidential Information has been returned or destroyed in accordance with this clause 6.

Notwithstanding the foregoing, the Receiving Party may retain copies of Confidential Information to the extent required by applicable law or regulation, provided that such retained information remains subject to the confidentiality obligations of this Agreement.

The obligations set forth in this clause 6 shall also apply to all Representatives of the Receiving Party who have had access to Confidential Information.

No License or Rights Granted

Nothing in this Agreement shall be construed as granting, by implication, estoppel or otherwise, any license or right under any patent, copyright, trademark, trade secret or other intellectual property right of the Disclosing Party.

The disclosure of Confidential Information under this Agreement shall not constitute any representation, warranty, assurance, guarantee or inducement by the Disclosing Party of any kind with respect to the Confidential Information, including without limitation regarding its accuracy, completeness, or freedom from defect.

No rights or licenses are granted to the Receiving Party other than the limited right to evaluate the Confidential Information solely for the Purpose as defined herein.

The Receiving Party acknowledges that any intellectual property rights in the Confidential Information remain the exclusive property of the Disclosing Party or its licensors.

Term and Termination

This Agreement shall commence on the Effective Date and shall continue in force for a period of **three (3) years**, unless terminated earlier in accordance with the provisions of this Agreement. Either Party may terminate this Agreement at any time by giving **thirty (30) days** prior written notice to the other Party.

The obligations of the Receiving Party under this Agreement shall survive termination of this Agreement and shall continue for a period of **five (5) years** from the date of termination, or until such time as the Confidential Information becomes publicly available through no breach of this Agreement by the Receiving Party, whichever occurs first.

Upon termination of this Agreement, the provisions of Sections 6 (Return or Destruction of Information), 9 (Remedies and Injunctive Relief), 10 (Governing Law and Jurisdiction), and 11 (Severability) shall survive and remain in full force and effect.

Termination of this Agreement shall not relieve either Party of any liability for breach of this Agreement occurring prior to such termination.

Remedies and Injunctive Relief

The Receiving Party acknowledges that any breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages would be inadequate compensation. In the event of an actual or threatened breach of this Agreement by the Receiving Party, the Disclosing Party shall be entitled to seek immediate injunctive relief and other equitable remedies from any court of competent jurisdiction without the necessity of proving actual damages or posting a bond.

The right to seek injunctive relief shall be in addition to, and not in lieu of, any other remedies available to the Disclosing Party at law or in equity, including monetary damages.

The Receiving Party shall be liable for all costs and expenses, including reasonable attorney's fees, incurred by the Disclosing Party in enforcing this Agreement or in obtaining any remedy for breach thereof.

The remedies set forth in this Section 9 shall survive termination of this Agreement.

Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Germany.

Any dispute, controversy or claim arising out of or relating to this Agreement, or the breach, termination or invalidity thereof, shall be subject to the exclusive jurisdiction of the competent courts of [CITY], Germany.

The Parties hereby irrevocably submit to the jurisdiction of such courts and waive any objection to proceedings in such courts on the grounds of venue or on the grounds that the proceedings have been brought in an inconvenient forum.

This choice of law and jurisdiction shall not prevent either Party from seeking interim or provisional relief in any jurisdiction where assets of the other Party may be found.

Severability

If any provision of this Agreement is held to be invalid, illegal or unenforceable by a court of competent jurisdiction, such provision shall be deemed severed from this Agreement and the validity, legality and enforceability of the remaining provisions shall not be affected or impaired thereby.

In the event that any provision is deemed invalid, illegal or unenforceable, the Parties shall negotiate in good faith to replace such provision with a valid, legal and enforceable provision that most closely reflects the original intent of the Parties.

If the severed provision is essential to the performance of this Agreement such that its removal would fundamentally alter the nature or purpose of this Agreement, either Party may terminate this Agreement upon thirty (30) days' written notice to the other Party.

Entire Agreement and Modifications

This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, or agreements relating to such subject matter, whether written or oral.

No amendment, modification, or waiver of any provision of this Agreement shall be effective unless made in writing and signed by both Parties.

Any waiver of a breach of any provision of this Agreement shall not constitute a waiver of any other breach of the same or any other provision. IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the Effective Date.

DISCLOSING PARTY:[DISCLOSING PARTY LEGAL NAME]

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: [SIGNATURE DATE][Company Seal, if applicable]

RECEIVING PARTY:[RECEIVING PARTY LEGAL NAME]

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: [SIGNATURE DATE][Company Seal, if applicable]